

Civilian Personnel Wrap-up

SEAPOWER THROUGH ENGINEERING

TOPIC LEARNING OBJECTIVES

Upon successful completion of this topic, the student will be able to:

1. Given civilian personnel scenarios and alternative supervisor actions, determine, as a member of a team, the most appropriate supervisor actions for each scenario.

STUDENT PREPARATION

Student Support Material

1. Case Studies

Primary References

1. Addressing Deficiencies in Conduct/Performance

Additional References

1. http://www.opm.gov
2. http://www.usajobs.gov
3. http://www.eeoc.gov
4. http://www.mspb.gov/
5. http://www.flra.gov/

Overview

- Takeaways
- Advice
- Case studies

Takeaways on CIVPERS

- What are your thoughts/takeaways?
- Civilians are the same as you, but different
- They have different backstories/experiences
- You ***<u>can't</u>*** assume that:
  - They understand what it is like to wear the uniform
  - They have ever been on a ship
  - That they have had leadership training/experiences/opportunities
- You ***<u>can</u>*** assume that:
  - They are patriotic
  - They are hardworking
  - They value the warfighter perspective
  - They want to learn and grow as civil servants
- Good leadership is good leadership
  - Need to understand the frame in which to apply it (reward, discipline, expectations, etc.)

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Advice

- Become personally invested in your civilian co-workers
  - Educate them about Navy history, culture, and traditions
    - Get them onboard a ship!
  - Learn about and participate in personnel management activities
    - Awards and recognition
    - Performance evaluations
    - Hiring panels/selections
  - Work to develop/promote your people
    - Personal/professional goals
    - Training/experiences
    - Individual development plans
- Be consistent and transparent in:
  - Communication
  - Expectation setting
  - Decision making

Your level of engagement (or lack of it) will be noticed!

Advice (cont.)

- Leverage your HRO and senior civilians
  - You are not expected to be intimately familiar with all civilian personnel processes
- If you are fair, ethical, consistent, and transparent in your actions, then you will most likely avoid any EEO complaint, individual/union grievance, etc., however:
  - It will not eliminate them from your command
  - Do not take an EEO complaint personally – It's an employee's right to file
  - Document, document, document
    - Hiring decisions/process
    - Poor personnel performance
    - Personnel discussions/counseling (verbal or written)
- Use "Addressing Deficiencies in Conduct/Performance" handout to help guide corrective actions in performance/conduct circumstances

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Case Study – Team #1

You just reported as the Planning Officer at IMFPACNORWEST six weeks ago. Your code has 80 civilians assigned to it. Approximately 15% are general schedule and the rest are wage grade employees. While all of the civilians are full-time employees, it appears to you that some of the employees aren't working a full 40 hours a week and that others are working more than 40 hours a week. You don't want to have to pay overtime unless it's absolutely necessary. You decide to hold a fact-finding meeting with the supervisors. You schedule the meeting for the following afternoon. For each question below, select the most appropriate response.

1. One of the supervisors stops by to remind you that you need to invite a union representative to attend the meeting. What do you do?

   a. You call and invite the union representative to attend the meeting. You do this because the union has the right to attend any meeting where personnel policy or practices are being discussed

   b. You do not invite the union representative to the meeting because there won't be any bargaining unit employees attending the meeting

   c. You wait to determine if one of the supervisors requests union representation under the "Weingarten" Right. If a supervisor requests union representation, you will stop the meeting and reschedule it for a time when a union rep can attend

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2. At the meeting, one of the supervisors explains that his GS-5 (non-exempt) secretary is very conscientious and works as many hours each week as required for her to accomplish her taskings. He tries to keep track of her hours so that he can give her time off when the office isn't as busy. Recalling the provisions of the Fair Labor Standards Act (FLSA), you tell him...

a. To continue as he has been doing and request a desk audit for her position to determine if some of her work should be assigned elsewhere

b. To have his secretary document her hours on her time and attendance card so she receives all the comp time that she's entitled to

c. To have his secretary only work 40 hours a week as she must receive overtime pay when she works more than 40 hours a week

d. Nothing. He has the situation under control

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3. Another supervisor complained that when he started his job eight months ago, he found out that the previous supervisor used the 59-minute rule every Friday and the day before holidays so that his folks could avoid the heavy traffic leaving the base. The supervisor complained that the previous supervisor had set the precedent and he couldn't change it. You advise him...

a. That he must continue with the established practice or he'll be charged with an Unfair Labor Practice (ULP)
b. To call a meeting the next day and advise employees that the automatic 59-minute rule will be terminated in two weeks
c. To notify employees in writing that effective immediately, the automatic 59-minute rule is cancelled. Provide a copy to the Union Steward
d. To meet with the Union Steward and negotiate a date to stop the automatic 59-minute rule. Then advise employees of the change

Case Study – Team #2

You supervise a group of pipe fitters at a shipyard. One of your employees, Taylor, complained to to you this morning that a civilian coworker's computer screensaver displays inappropriate material. The employee wants the screensaver changed and the offending employee, Chris, disciplined. You tell Taylor that you need to check into the situation and you make an appointment to meet with them the following morning. You check the records and note that Chris signed an attendance sheet for a briefing on what can and cannot be installed on Navy computers. For each question below, select the best response.

1. Chris's screensaver does display an inappropriate picture. Chris has his own office and has situated his computer so that people passing by his office or stopping by on routine business cannot see his screensaver. Chris says that other people have never noticed his screensaver and it was only seen because Taylor stopped by his office and sat at his desk to write him a note.

a. You counsel Chris that the screensaver is inappropriate and must be removed immediately. You decide to take no further action

b. You tell Chris that the screensaver is inappropriate and must be removed immediately. You also tell him that you will follow-up with appropriate corrective action

c. Since it's not creating a problem for anyone else and the screensaver isn't visible to most visitors, you decide to let Chris keep his screensaver

d. You schedule an appointment to meet with the Union Steward to discuss removing the offending screensaver from Chris's computer

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2. What type of corrective actions do you take against Chris for displaying inappropriate material as his screensaver?

a. None
b. Place him on a Performance Improvement Plan (PIP)
c. Take disciplinary action

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3. You meet with Taylor the next morning as promised. Taylor seems very upset and tells you that other co-workers in the section heard about the complaint and are giving Taylor a hard time. Taylor is now under a great deal of stress and considers the section to be a hostile work environment and is requesting 30 days administrative leave. Your section is up against some tight deadlines and you can't afford to let Taylor or anyone else off work for 30 days. You tell Taylor that you will tell the co-workers to stop the harassment. In addition…

a. You tell Taylor you can only give 3 days of administrative leave. With a note from the doctor, you may be able to extend the administrative leave
b. You want to avoid an official complaint, so you negotiate with Taylor and the union representative and agree to two weeks of administrative leave
c. You suggest that Taylor take sick leave if needed to help deal with the stress. You advise Taylor that if she more than 3 days of sick leave is needed, to get a note from the doctor
d. You try to minimize the problem and tell Taylor to try and work through it. You deny Taylor's request for admin leave and say you won't approve annual or sick leave either

Case Study – Team #3

1. When your GS-5 employees quit to take a non-federal job closer to family, HRO filled the vacancy with a GS-6 employee, Alex, who was displaced after 15 years as a result of a reduction-in-force (RIF). Even though Alex will be able to retain the GS-6 grade for two years and will not suffer a cut in current salary, Alex is not happy about the job change. Several of your staff complained to you that Alex is uncooperative and "has an attitude". You've had to talk to Alex on two separate occasions about the importance of being courteous and helping others. While returning from a meeting this afternoon, you overheard Alex yell at a junior Petty Officer from another division who asked for assistance. Alex was loud, rude and insulting. You decide it's time to take action. Which of the following would be your best course of action?

   a. You view Alex's behavior as an emotional problem. You schedule Alex to attend Stress Management training
   b. You view Alex's behavior as a conduct problem. You give Alex a letter of reprimand
   c. You view Alex's behavior as a performance problem. You place Alex on a Performance Improvement Plan (PIP)

Case Study – Team #3

2. Bill, one of your supervisors, complained to you that one of his employees, Frank, is out of the office at least one and generally two Mondays each month on sick leave. Bill stated that he needed his full staff at work on Mondays when the new jobs came in, so after a couple of months, he started refusing to grant Frank's requests for sick leave on Mondays. Now instead of requesting sick leave in advance, Frank calls in sick two hours before he is supposed to report to work. Bill thinks that the situation is now out of control and he asks for your advice. You tell him...

a. Frank is abusing sick leave. Tell Frank that the next time he calls in sick on a Monday, you will take disciplinary action (give him a 5-day suspension)
b. That there is nothing that Bill can do. As a civilian employee, Frank is entitled to take sick leave when he's sick
c. To issue Frank a letter of medical requirement which requires a doctor's note whenever Frank takes sick leave on a Monday

Case Study – Team #3

3. One of the full-time civilians you directly supervise has recently started coming to work 15 to 20 minutes late two to three times a week. You think you should take action or the other employees may also start coming in to work late. You decide to call him in for counseling and to take corrective action to stop the tardiness. You may take any of the following actions EXCEPT…

a. Have payroll deduct money from his paycheck for time not worked
b. Charge him annual leave for time not worked when he reports to work late
c. Require that he stay late and makes up the time when he reports to work late
d. Give him a verbal reprimand and move up in progressive discipline if the problem continues